

Meeting Summary — Rahman v. United Health Services Hospitals et al., 3:26-cv-00197 (NDNY)

ATTORNEY WORK PRODUCT — PRIVILEGED & CONFIDENTIAL

Attorney-client meeting, Aug 2 2026. Present: Douglas Drazen (counsel), Dr. Faraaz Rahman (client), Haseeb Rahman (father), Dr. Mubeena Iqbal (mother). This summary supersedes the automated (Gemini) meeting notes; §6 lists the errors corrected. Timestamps (hh:mm:ss) point into the meeting recording.

1. Bottom line

- 🔥 **STATUTE-OF-LIMITATIONS (SoL) CLOCK — WEEKS AWAY.** Malicious prosecution: 1-yr limit from the **Sept 2025 acquittal ≈ Sept 2026**. Drazen: timeliness “may be in question,” evaluating now (01:04:38).
- 🕒 **MEDIATION MUST FINISH BY NOV 2026** (00:04:20). Drazen won’t mediate before defendants’ discovery responses (00:05:23) — tight window.
- Biggest new fact:** police were called by **Guthrie hospital, not the complainant** (00:40:05) — the initiation element of malicious prosecution.
- Drazen committed to:** serve discovery demands (~14 items, #1 = complete academic record), evaluate malicious-prosecution SoL, sequence mediation after discovery, follow-up call “soon.”
- Family owes Drazen:** bank records, academic-record markup, 2022 rebuttal email, Ahmed complaint list, senior-resident texts, annotated 4,000-page corpus, doctors’ names, Haseeb’s “all that information.”

2. Decisions

Status	Decision	Time
Decided	No mediation until defendants’ discovery responses received; mediation completed by Nov 2026	00:05:23 / 00:04:20
Decided	Discovery demand #1 = complete academic record (DA-produced set presumed incomplete)	00:05:23
Decided	Demand entire medical record + direct access to UHS work email (or full hard-copy production)	01:10:28 / 01:00:37
Decided	Comparator-complaint scope limited to complaints “of a similar nature” (discriminatory), not all complaints	01:12:28
Decided	Client to initiate ACGME complaint as parallel-track leverage (Drazen: “that’s fine”)	01:05:45
Decided	Haseeb owns the evidence-collection channel to Drazen	01:29:03
Pending legal review	Malicious-prosecution claim vs arresting officers / prosecution team (DA immune) — viability + SoL; Drazen skeptical (“I don’t hold out a lot of hope”) but reviewing	01:04:38 / 01:06:49
Pending legal review	Whether UHS–Guthrie inter-counsel communications are privileged (client argues not)	00:56:56 / 00:58:11
Pending legal review	Recoverability of family consequential damages; “loan” characterization of father’s ~\$300k/yr transfers needs vetting	00:28:43

3. Action items (all 16 — SoL-critical first, then by owner)

 **Before any of this: book the overdue cardiac-device check. Health before litigation.**

Pacing: max 2 substantive tasks/week; retrieval tasks batched in one low-effort block; emotionally heavy tasks never stacked, light week after; SoL-critical items first regardless of load, in single sittings.

ID	Owner	Item	Deadline	Urgency	Pacing (client items)
DZ-02	Drazen	Evaluate malicious-prosecution claim vs officers/prosecution team: viability + timeliness (01:04:38)	 SoL ≈ Sept 2026	CRITICAL	—
SH-01	Faraaz + mother	Identify the two complaint-filing doctors + two fired Indian physicians; names to Drazen (00:59:30)	Not stated	CRITICAL (SoL input)	Wk 1, single sitting; mother carries contacts
HB-01	Haseeb	Send Drazen “all that information” incl. financials, “43 of the forgery” exhibit (01:29:03)	Not stated	HIGH (feeds SoL review)	Father carries channel
FR-01	Faraaz	Bank records: father’s ~\$300k/yr transfers, Dubai cash payments, living expenses (00:33:46)	Not stated	High	Substantive; offload assembly to Haseeb
FR-02	Faraaz	Mark up academic records — flag every unfair/inaccurate entry (00:35:01)	Not stated	High	Emotionally heavy — own week, light week after
FR-03	Faraaz	Locate 2022 ten-page GME rebuttal email; copy not yet found (00:37:46)	Not stated	Med (DZ-01 fallback)	Retrieval — low-effort block
FR-04	Faraaz	List 2021–2022 official complaints vs Dr. Awais Ahmed (01:13:37)	Not stated	High	Retrieval — same block
FR-05	Faraaz	Recover/print senior-resident iMessage texts (01:16:57)	Not stated	High	Retrieval — same block
FR-06	Faraaz	Annotate ~4,000-page corpus; deliver compilation (01:16:57)	Not stated	Med	Emotionally heavy — never same week as FR-02
FR-07	Faraaz	Initiate ACGME complaint (01:05:45)	Not stated	Med	Substantive; after Wk-1 SoL batch
FR-08	Faraaz	Send CCTV “poster” image to Drazen (01:08:55)	—	Done	Completed in-call (01:10:28)
FR-09	Faraaz	Check “document for 100 million with a base of 10” — referent [unresolved] (00:40:05)	Not stated	Low until clarified	Fold into low-effort block
DZ-01	Drazen	Finish/serve discovery demands — consolidates ~14 commitments: academic + medical records, email access, comparator complaints, Dr. Jones letter, all comms referencing client (internal / DA / Guthrie Apr 1–30), DA subpoena copy, stay-away directive, admin-leave paper trail, Ahmed departure records, Nadeem texts, body-cam, Rehman step-down email (00:05:23 et seq.)	“There’s a deadline” — not stated	High	—
DZ-03	Drazen	Sequence mediation after discovery responses (00:05:23)	 Mediation	High	—

ID	Owner	Item	Deadline	Urgency	Pacing (client items)
			by Nov 2026		
DZ-04	Drazen	Follow-up family call (01:29:03)	"Soon"	Med	—
FAM-01	Family	Call Drazen from the Verizon phone until his line ticket resolves (00:01:14)	—	Logistics	Zero-load

4. What the meeting established (load-bearing facts)

Theme	Fact	Why it matters	Time
Discovery	UHS refused the records request and called security; academic record surfaced only via criminal discovery, asserted incomplete around Dr. Ahmed	Justifies demand #1 + spoliation vigilance	00:05:23 / 00:06:49
Discovery	Client holds printed UHS emails (made pre-cutoff) + ~4,000 saved pages	Corroboration layer if production is thin	00:55:54 / 01:16:57
April 14	Probation imposed without notice AND FMLA filed same day; arrest came while retrieving laptop to write the FMLA document	Temporal-proximity spine of retaliation	00:14:21 / 00:55:54
April 14	Within ~24 hrs of arrest, both hospitals dropped all investigations and asked him back; decision chain ran corporate-legal-to-legal, Ali "only the messenger"	Negates probable cause + pins institutional liability	00:43:40 / 00:47:06
Pattern	Two non-Pakistani comparators forced out (Iranian resident via solicited poster complaints; Indian resident fired 6 months pre-graduation, prompting two doctors' resignation-threat letters) vs claim only non-Pakistani residents get disciplined	Title VI core	00:18:03 / 00:19:00 / 00:20:44
Pattern	Alleged forged signature by Dr. Ali on probation document; UHS made Ali step down (over nepotistic hiring, 00:09:26) knowing of the forgery	Intentionality lever defeating academic deference	00:56:56
Damages	Rehman (defendant) was also client's electrophysiologist and allegedly kept a post-op infection off the record; ICD unchecked 3 yrs against a 5-yr heart-failure prognosis	Forecloses lack-of-knowledge defense	00:31:12 / 00:32:39
Malicious prosecution	After internal exoneration and graduation, UHS still gave the DA his academic records (00:45:36); Guthrie — not the complainant — called police (00:40:05); arrest record survives expungement for USCIS and NYS licensure (01:01:30)	Initiation, malice, permanent injury	(inline)

5. Damages figures stated on the record

Category	Figure	Basis stated	Time
Family loans / lost salary	~\$300k/yr × ~3 yrs	Father's repayable-loan transfers, mirroring lost Tampa contract (\$350k + \$70k bonus, 3 yrs)	00:28:43
Living expenses	~\$1M / 3 yrs	Documentable via bank records, excl. food + asset sales	00:32:39
Medications	\$4,000 / \$600 / \$400 per bottle	Three essential meds; \$4,000 med forgone "for quite some time"	00:27:22
Cardiac device	3 yrs missed ICD checks (q4mo req.)	Monitoring lapse; 5-yr heart-failure / 10-yr transplant prognosis	00:32:39
Lost salary	Unquantified	Vermont offer "taken away" during secret probation	00:13:03
Lost salary	3 yrs out of practice	"Three years... since I've practiced medicine"	01:03:33

Category	Figure	Basis stated	Time
Family hardship	Amount garbled [unresolved]	Bone marrow transplant for father's wife, cash in Dubai; bank records exist	00:33:46
Property sales	Unquantified	Property + store sold; Dubai shipping disruption	00:31:12
Legal fees	Unquantified	Criminal defense lawyers paid separately, out of pocket	01:07:48
Board exam	Fee unquantified	UHS failed to pay board-exam fee; login locked in UHS email	01:11:15
Licensure	Unquantified	License unclaimable; NYS board asks "have you ever been arrested?"; ethics review	00:33:46 / 01:01:30 / 01:07:48
Immigration	Unquantified	Three immigration attorneys: arrest record serious for USCIS despite acquittal	01:02:46
Reputation	Unquantified	CCTV "wanted" poster spread; UHS nurse recognized him; "scarlet letter"	00:56:56 / 01:08:55
Emotional distress	Unquantified	"That's the time I actually broke" — forced to keep working with Ahmed	00:11:46
Counsel's assessment	n/a	Drazen: "we definitely have measurable ... damages"	00:30:05
[Unresolved]	"100 million with a base of 10"	Referent never clarified (Drazen momentarily away)	00:40:05

6. Corrections to the automated (Gemini) notes this summary replaces

Auto-notes error	Correction
Action-item undercount: 12	16 recorded. 12 reconciles only if Drazen's ~14 demand commitments collapse into one and FR-08 (done in-call), FR-09 (unclear referent), DZ-04, FAM-01 are excluded
Speaker lumping: mother's turns labeled "faraaz rahman"	Reassigned to Dr. Mubeena Iqbal where cued ("Hi, Abena"; third-person "Perez... his father") — flagged, confidence <0.7
Garbles left raw	[corrected]: Horizon → Verizon; Oasis/O Ahmed/OS Ahmed/OM → Awais Ahmed MD; Reman/Rakman/"Dr. Rahman" → defendant Afzal ur Rehman, NOT the client ; Nadim/Nadu → M. Farhan Nadeem MD; Guthri/G3 → Guthrie; USS/UHF → UHS; Broom → Broome; Alsam → Assalam; Abena → Mubeena; Perez → Faraaz; sunny upstate → SUNY Upstate
Garbles left [unresolved]	ANSCO (CCTV entity); Dr. Hila / Dr. Rama's position; "Carri" (probed CEO name)
Buried urgency	SoL warning ("timeliness... may be in question," 01:04:38) not surfaced as the meeting's most time-critical output

7. Open questions for Drazen

#	Question	Time
1	Malicious-prosecution SoL: timely off the Sept 2025 acquittal (client's accrual argument, 01:05:45)? Against whom — officers/ancillary team only, DA immune?	01:04:38
2	"ANSCO" [unresolved]: what entity holds the never-produced CCTV footage its lawyers viewed and controlled? Third-party subpoena / spoliation target	00:50:15
3	"100 million with a base of 10" [unresolved]: off-line document question — referent never clarified; possible demand/valuation figure	00:40:05
4	Are UHS–Guthrie inter-counsel communications discoverable, as client contends?	00:56:56 / 00:58:11

#	Question	Time
5	Did a DA subpoena for the academic records exist — who told the DA the records mattered (grand-jury channel; exhibit “43 of the forgery”)?	00:38:32 / 00:51:14
6	Which UHS corporate officer topped the admin-leave / stay-away directive chain (“Carri” [unresolved])?	00:47:06 / 00:52:32
7	Are the father’s loan-structured transfers and other family consequential damages recoverable?	00:28:43 / 00:31:12
8	Confirm the discovery-demand filing deadline (“there’s a deadline, I don’t have the schedule in front of me”)	01:00:37